

Stereo.HCJDA 38.
JUDGMENT SHEET.

LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT

W.P.No.2857 of 2019

MUHAMMAD RAFIQUE, ETC.

Versus.

PROVINCE OF PUNJAB, ETC.

JUDGMENT.

Date of hearing: **08.06.2026**

Petitioners by: M/s Mujeeb-ur-Rehman Kiani and Haris Awan, Advocates.

Respondent No.1 M/s Malik Amjad Ali, Additional Advocate General and Rahat Farooq Raja, Assistant Advocate General.

Respondents No.2 M/s Abdullah Sami Ullah, Advocate and to 4 by: Shaukat Ali Joyia, Advocate/Legal Advisor.

Mirza Viqas Rauf, J. Through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred to as “**Constitution**”), the petitioners are seeking writ of mandamus against the respondents, directing them to allot developed plots equivalent to 30% of the acquired lands of the petitioners as per policy promulgated on 27th December, 1977 in terms of judgment and decree dated 1st April, 1990 passed by the Civil Court.

2. Facts in brief forming background of this constitutional petition are that the petitioners herein are successors-in-interest of Kala Khan, Fazal Ahmad and Muhammad Akbar, who were owners in possession of land measuring 114-Kanals 4-Marlas situated in the revenue estate of Dhoke Noor, Tehsil & District Rawalpindi. The said land was acquired alongwith other land situated in the revenue estate of Dhoke Noor by respondent No.1 for establishing Area Development Scheme-I. The possession was

purportedly taken over in the year 1978. The predecessors-in-interest of the petitioners, considering themselves entitled in terms of policy dated 27th December, 1977 for 30% land out of total land acquired, laid their claim before the respondent's department but after receiving no positive response, they instituted a suit for declaration before the learned Senior Civil Judge, Rawalpindi. Suit was ultimately decreed ex-parte vide judgment dated 1st April, 1990. The respondents' department then moved an application under Order IX Rule 13 of the Code of Civil Procedure (V of 1908) (hereinafter referred to as "**CPC**") for setting aside of ex-parte decree but same was dismissed for non-prosecution on 6th January, 1991. An application for restoration of said application was though moved but that too was dismissed vide order dated 17th July, 1991. The respondents then preferred an appeal before the learned District Judge, Rawalpindi but the same was also dismissed vide order dated 13th May, 1992. This prompted the respondents to file C.R.No.435 of 1992 before this Court, which was allowed vide order dated 4th July, 1993 and case was remanded to the learned Trial Court for its decision afresh after framing of issues. In post-remand proceedings, the learned Civil Judge again dismissed the application for restoration of application under Order IX Rule 13 **CPC** by way of order dated 15th December, 1993. An appeal was again preferred before the learned District Judge Rawalpindi, which was allowed and case was remanded to the learned Trial Court to decide the application under Order IX Rule 13 **CPC** on its merits. The said application was again dismissed for want of prosecution on 22nd October, 1996 against which an appeal was though preferred before the learned District Judge but it was dismissed vide judgment dated 20th October, 2000. The respondents then preferred C.R.No.77 of 2001 before this Court, which was dismissed vide judgment dated 17th March, 2003. A civil petition No.1046 of 2003 was then presented before the Supreme Court of Pakistan, which was though converted into civil appeal No.191 of 2005 but ultimately dismissed vide order dated 22nd April, 2010. It is grievance of the petitioners that though the decree of the learned Civil Judge dated 1st April, 1990 attained finality

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but the respondents, without any lawful excuse, are not implementing the same.

3. It is noticed that initially this constitutional petition was allowed by way of judgment dated 30th March, 2022, however, it was assailed in Intra Court Appeal No.37 of 2022, which was disposed of vide order dated 20th February, 2023 with the following observations: -

“With the consent of both the learned counsel for the parties, impugned judgment dated 30.03.2022 passed by the learned single Bench of this Court, is hereby set-aside, writ petition No.2857 of 2019 of the respondents is deemed to be pending before it which would be decided considering all the relevant facts and documents after the decision of C.P.No.4034 of 2019 pending before the august Supreme Court of Pakistan filed on behalf of the appellants. Disposed of as such.”

4. I have heard learned counsel for the petitioners as well as learned Law Officer at considerable length and also perused the record with their assistance.

5. As already observed that this petition is in the form of writ of mandamus, primarily seeking implementation of the judgment and decree dated 1st April, 1990 passed by the learned Civil Judge in a suit for declaration instituted by predecessors-in-interest of the petitioners. There is no denial to the fact that the land in question was owned by predecessors-in-interest of the petitioners, which was acquired by the respondents' department for establishing Area Development Scheme-I. Being aggrieved of quantum of compensation in lieu of their acquired land, predecessors-in-interest of the petitioners instituted a suit for declaration claiming therein that physical possession of the land was since taken by the respondents from them in the year 1978, so they are entitled for allotment of plots @ 30% in lieu of their total land acquired under the notification dated 27th December, 1977. The respondents since remained aloof from the proceedings, so they were proceeded against ex-parte and ultimately suit was decreed as such vide judgment dated 1st April, 1990. The respondents, however, later on moved an application under Order IX Rule 13 **CPC**,

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seeking setting aside of ex-parte decree, but it was dismissed for non-prosecution, for the restoration of which an application was moved, which too was dismissed. The respondents then preferred an appeal before the learned District Judge, Rawalpindi, which was dismissed on 13th May, 1992. They then filed C.R.No.435 of 1992 before this Court, which was accepted vide order dated 7th July, 1993 and matter was remanded to the learned Civil Judge to decide the application for setting aside ex-parte decree on merits. In post-remand proceedings, the trial Court again dismissed the application for setting aside ex-parte decree on 15th December, 1993 on merits. An appeal was then preferred by the respondents and case was again remanded vide order dated 10th April, 1996 by the learned District Judge. On 22nd October, 1996, when the matter came up for hearing before the learned Civil Judge, no one appeared for either sides upon which the trial Court dismissed the suit for non-prosecution instead of dismissing the application for setting aside ex-parte decree. After having realized the said mistake, the trial Court, however, later on amended the order dated 22nd October, 1996 and substituted the term “petition” instead of “suit” in that order. An appeal was then preferred by the respondents, which was dismissed in limine. This followed a revision application i.e C.R.No.77 of 2001 before this Court, which was dismissed through order dated 17th March, 2003. The respondents’ department then assailed the said order before the Hon’ble Supreme Court of Pakistan in C.A No.191 of 2005, which was dismissed vide judgment dated 22nd April, 2010. In the second round, the respondents filed an application under Section 12 (2) **CPC**, which was dismissed vide order dated 11th January, 2012 against which a revision application was filed but of no avail as the same was also dismissed vide order dated 21st April, 2012. This prompted the respondents to file W.P.No.3187 of 2012, which too was dismissed vide order dated 17th September, 2019. The respondents thereafter filed C.P.No.4034 of 2019 before the Hon’ble Supreme Court of Pakistan, which though remained pending but was ultimately withdrawn vide order dated 27th February, 2023 in the following manner: -

“The learned counsel for the petitioner submits that ICA filed by the petitioners has been allowed and the matter has been remanded to the learned Single Bench. In this view of the matter, this petition is not pressed in order to pursue his remedies before the learned Single Bench. Dismissed as not pressed.”

6. The main resistance to the execution of the ex-parte decree on the part of respondents is that it is not executable as the possession of the land was obtained by the respondents on 15th April, 1974 and as such the petitioners were not entitled to seek a decree for declaration in terms of prevailing policy notified on 27th December, 1977; suffice to observe that in their plaint it was specifically asserted by the petitioners that physical possession of the land was taken by the respondents' department from them in the year 1978, in furtherance whereof the attorney of the petitioners appeared in the witness-box who too asserted the same fact, which went un rebutted as the respondents were proceeded against ex-parte.

7. It is also noticed that while preferring C.P.No.1046 of 2003, which was later on converted into C.A No.191 of 2005, the respondents agitated the same grounds in their petition, which for ready reference and convenience are reproduced below: -

- A. **That the land of Area Development Scheme Rawalpindi had been acquired during 1974 and physical possession taken over on 27.05.1974. The 30% exemption policy is applicable only for those schemes where the possession of the land had been taken over after 17.08.1977.**
- B. **That the judgment dated 01.04.1990 of the Civil Judge 1st Class Rawalpindi is itself contradictory as it reflects for allowing 30% exemption in favour of ex-land owners as per laid down policy of the Government. While the said exemption decision is not covered under the laid down policy of the Government contained in Memo.No.2(1) /77-HM-II dated 27.12.1977 of H&PP Department as the possession of the suit land had been taken over on 23.05.1974 as per “Rozenamcha Waqiyati” No.210 much before 17.08.1977, the cut off date of possession for allowing exemption.**

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8. It is an admitted position that C.A.No.191 of 2005 was ultimately dismissed vide judgment dated 22nd April, 2010 against which though a review application was filed but that too ended in dismissal. The respondents, thus, have already availed their remedies before the Supreme Court of Pakistan with the same grounds, so they are precluded to agitate the same now before this Court. Even otherwise, mere reliance on the entries in the award with regard to date of taking over of the possession would be of no avail as in order to overcome the dispute relating to taking over of the possession of the acquired properties, the policy was formulated which was made applicable to the properties where physical possession of the acquired land was taken over after the target date.

9. One of the objections on the part of respondents is that in the first instance, the petitioners since filed execution petitions, which were dismissed, so in the light thereof instant petition is not maintainable; it is observed with all clarity that a decree for declaration is not executable in terms of Order XXI **CPC**. It is trite law that whenever a Civil Court passes a decree for declaration, the revenue authorities are under obligation to act upon the same while considering it as a primary obligation. A decree for declaration cannot be put to execution in ordinary manner as prescribed under Order XXI **CPC** and instead such a decree is to be presented to the revenue officer for attestation of mutation and its incorporation in the revenue record in the mode prescribed under section 42 of the Punjab Land Revenue Act, 1967.

10. Needless to observe that no time frame is provided under section 42 of the Land Revenue Act, 1967 for implementation of the decree. At the cost of repetition, it is observed that when once all the remedies have been availed by the respondents against the ex-parte judgment and decree up to the Supreme Court of Pakistan, with all the grounds agitated now, acceding their stance would mean to sit upon the judgment of the Supreme Court of Pakistan, which under no law is permissible for this Court and it would offend the mandate of Article 189 of the **Constitution**.

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11. For the foregoing reasons, this petition is **allowed** with the direction to the respondents to implement the judgment and decree dated 1st April, 1990 in its true spirit. No order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

Approved for reporting.

JUDGE